

**JURISTQUEST 2025**  
**India's First Moot Marathon**  
**MOOT PROBLEM - I**  
**(For Preliminary Rounds & Quarter-Finals)**

1. The **Republic of Kalinda** is a democratic and pluralistic nation governed by a written Constitution adopted in 1950 after it gained independence from British colonial rule in 1947. Its people belong to diverse linguistic, ethnic and religious groups. The Supreme Court of Kalinda, in a catena of decisions, has recognized the ***Right to Privacy*** as a facet of the right to life and personal liberty under **Article 21**, and further developed jurisprudence around data autonomy, informed consent, and informational self-determination.
2. In recent years, Kalinda has witnessed an exponential rise in digital adoption across sectors, from finance and healthcare to education and e-commerce. With over a billion citizens generating vast amounts of personal data daily, the concerns surrounding data protection and privacy have grown significantly.
3. Hence, the Parliament of Kalinda enacted the Digital Personal Data Protection Act, 2023 (*herein after referred to as "KDPDP Act"*). It governs the collection, processing, storage and transfer of digital personal data and seeks to protect informational autonomy while balancing business innovation and national interest. The Act includes the following:
  - i. "Data Principal" refers to the individual to whom personal data relates.
  - ii. "Data Fiduciary" refers to an entity that determines the purpose and means of data processing.
  - iii. Consent shall be freely given, informed, specific, and unambiguous for the purposes of the act under Section 6.
  - iv. "Significant Data Fiduciaries (SDFs)" are subject to additional compliance requirements, including DPIAs, audits, and transparency obligations.
  - v. Children's data and sensitive personal data enjoy heightened protection.
  - vi. Section 17 of the Act allows exemptions for data processing done in the interest of sovereignty, national security, or public order and permits use of legitimate interest as a legal basis for processing, subject to satisfaction of a three-fold.

4. **Konnecta AI Inc.**, Kalinda’s largest private tech corporation, owns and operates various digital ecosystems including “**Vibe Net**”, a dominant social media platform, and “**Insta Track**”, a widely used e-commerce service. As of December 2025, the conglomerate had over 300 million active users in Kalinda.
5. In January 2025, Konnecta AI Inc., launched “**PersonaGen**”, an advanced generative artificial intelligence system seamlessly integrated across all its services. PersonaGen is designed to offer real-time predictive responses, AI-generated virtual companions, and tailored advertising content. The tool has been trained using massive datasets comprising users’ historical and behavioral data such as spanning posts, images, messages, and online interactions dating back to 2010.
6. On March 1, 2025, Konnecta AI Inc., unilaterally revised its “**Terms of Service and Privacy Policy**” applicable across all its digital products. The revised terms mandated:
  - a. Mandatory and irrevocable consent for using all the historical data as well as future data of the users across Konnecta platforms;
  - b. Reliance on the principle of “legitimate interest” (rather than explicit user consent) to justify the processing of data for AI training;
  - c. A dispute resolution clause requiring all claims (including privacy, consumer protection, or algorithmic harm) to be resolved solely through private arbitration, administered by an in-house panel appointed and funded by Konnecta;
  - d. A 30-day opt-out window, after which users’ data would be permanently retained in the AI training set, with no possibility of erasure or withdrawal, even if the user deletes their account.
7. **Ms. Reva Dev** is a 19-year-old digital artist and popular content creator on Vibe Net, with over 1.2 million followers. Reva alleges that her original works including hand-drawn illustrations, curated captions, and videos have been harvested to train PersonaGen, which now generates imitations of her distinctive artistic style and tone. As a result, her artistic identity has been diluted, affecting her credibility and audience engagement. Reva also claims that she did not receive meaningful notice or understand the implications of the updated ToS. She argues that the use of her content without express permission infringes her moral and economic rights as a creator.
8. Aggrieved by the actions of Konnecta AI Inc., Ms. Reva Dev, filed a **writ petition** before the Hon’ble High Court of Varnak under Article 226 of the Constitution of

Kalinda. The High Court of Varnak issued notice to Konnecta AI Inc. and the Union of Kalinda, and the matter remains pending for final hearing.

### **Issues for Consideration**

1. Whether the use of personal data for AI model training, absent explicit consent, violates the right to informational privacy under Article 21 of the Constitution of Kalinda.
2. Whether the consent mechanisms employed by *Konnecta AI Inc.* comply with the requirements of the KDPDP Act, 2023.
3. Whether the mandatory arbitration clause administered by an in-house panel violates the right to access to justice and principles of natural justice.
4. Whether the Union of Kalinda has failed in its constitutional and statutory duty to ensure robust regulation of private data fiduciaries and the protection of digital rights.

**Note:** *The issues framed above are not exhaustive. Participants are at liberty to frame additional issues.*

### **Instructions to Participants**

- The laws of the Republic of Kalinda are *pari materia* with those of the Republic of India.
- All laws shall be deemed to include their latest amendments as of June 1, 2025.
- References may be made to international conventions, foreign case laws, model laws (such as GDPR, OECD AI Principles, UN Guidelines on Business & Human Rights) wherever relevant.

### **DISCLAIMER**

This moot problem is a **fictitious legal scenario** created solely for the purpose of academic purposes. Any resemblance to actual persons, entities, or events is purely coincidental.

*This Moot Proposition has been exclusively drafted by **S, MR. SANIDHYA AND MS. LISHA R, Advocates from Karnataka High Court**, for the purposes of this competition. Any attempt by participants to contact the drafters to seek clarification shall result in immediate disqualification of the concerned team. The decision of the Organizing Committee in this regard shall be final and binding.*

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